

Rights

Definition of the right

- A right is an exclusive entitlement which is assigned by the jurisprudence(Shareeah) as authority or obligation.

Who assigns rights?

- **Rights in Islam are divine grants based on the sources from which Sharia rulings are derived. There is no legitimate right without evidence to support it, so the origin of right is God Almighty; as there is no ruler other than Him, and no legislation other than what He legislated.**

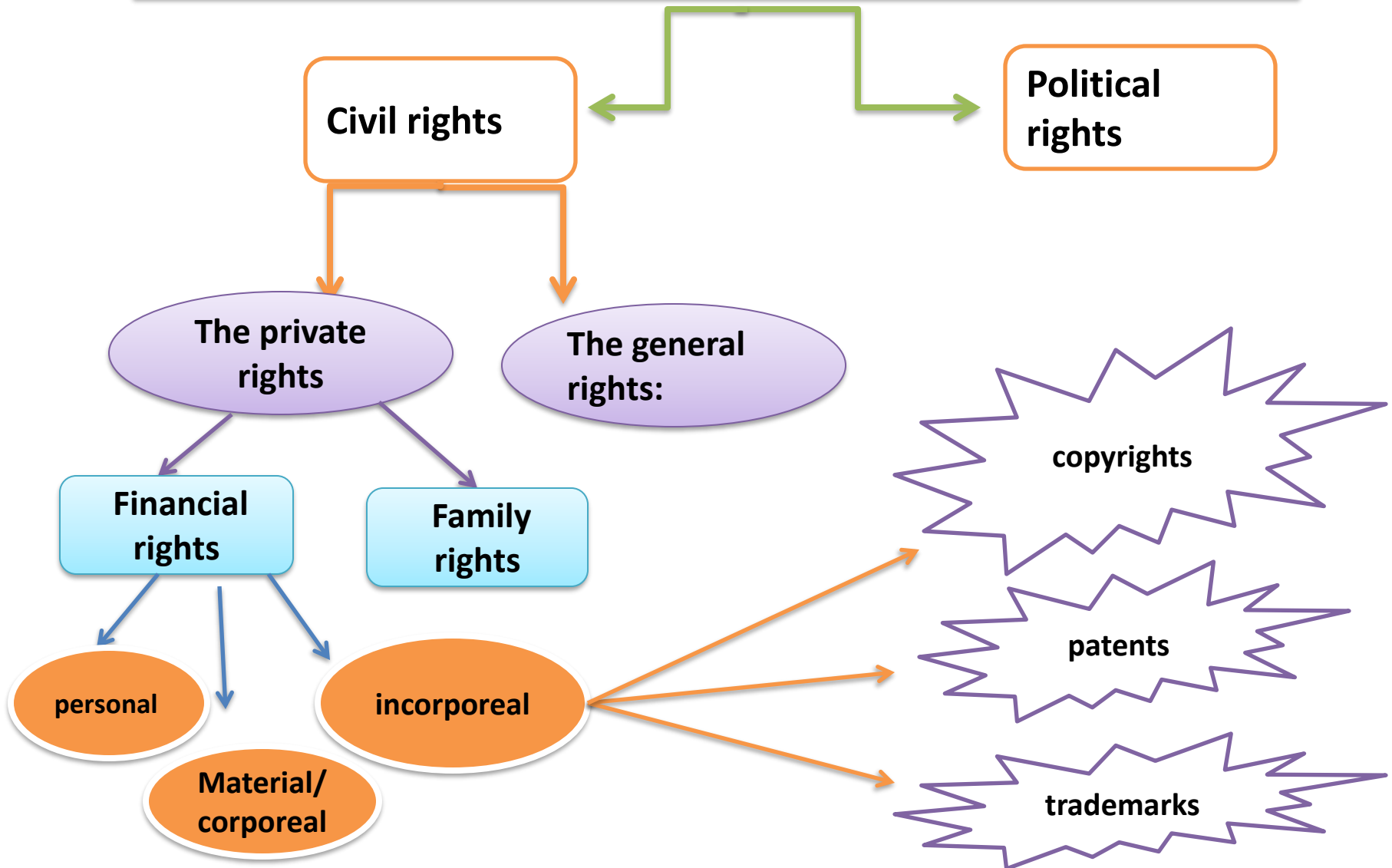
Authority may be exercised:

- **Over a person:** such as the right of child custody (*ḥaḍānah*) and guardianship over the person, or the authority of a ruler to govern.
- **Over a specific object/asset:** such as the right of ownership.

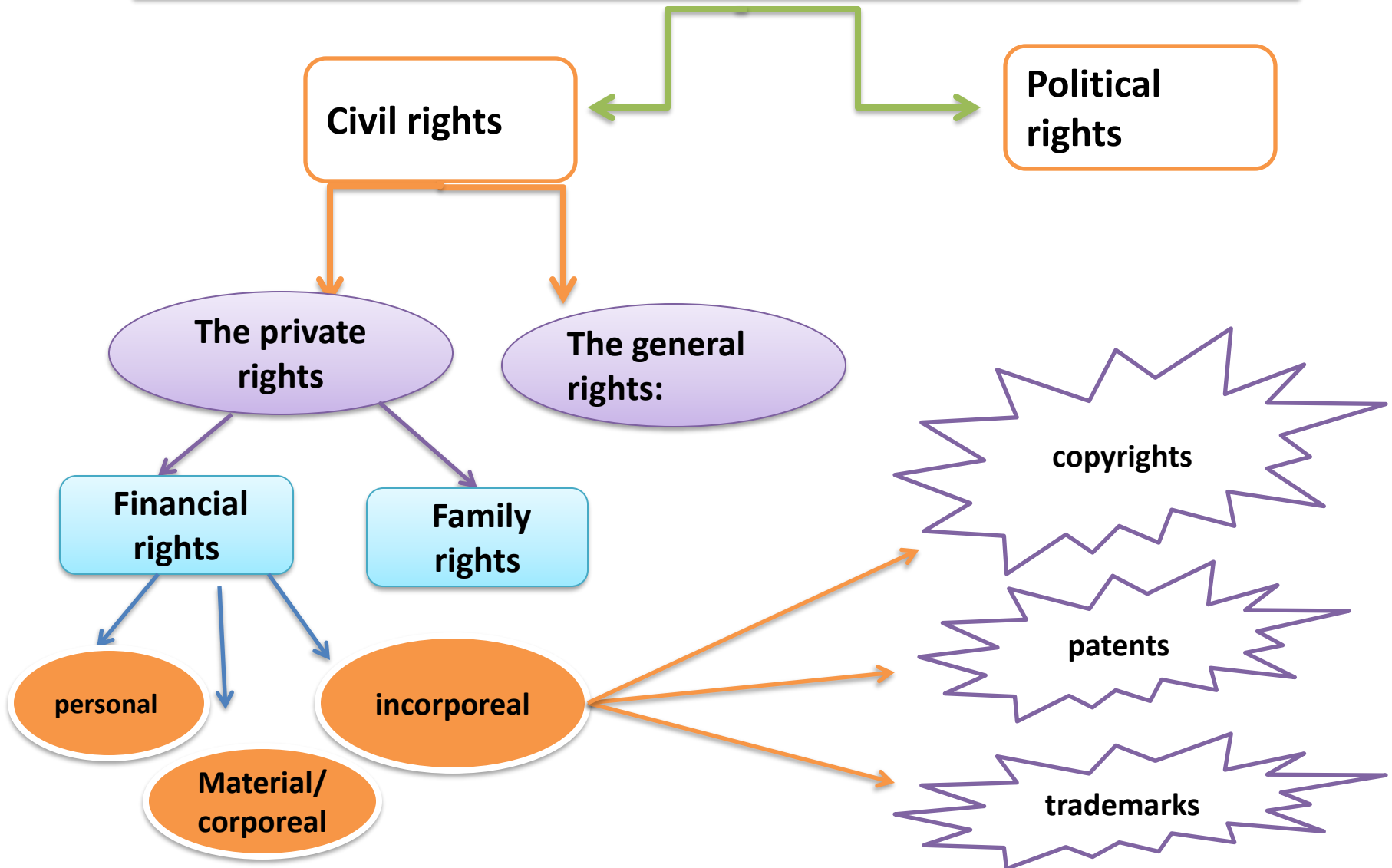
Obligation is a binding duty imposed upon a person, which may be:

- **Financial:** such as the repayment of a debt.
- **A performance to fulfill a specific objective:** such as an employee/hired laborer performing their contracted work, the duty of a parent to raise their children.

Sections of Rights in law



Sections of Rights in law



Incorporeal rights

The incorporeal rights



(Intellectual rights) it is
authority of a person on
something **incorporeal**

- In Islamic jurisprudence (*fiqh*), ownership is not restricted to a tangible, corporeal object existing in the physical world.
- **Property (*māl*) in Islamic jurisprudence** is defined as anything that possesses recognized **value** among people and may lawfully be **utilized**. Consequently, whatever holds recognized value and provides permissible utility is considered property; this is the operative standard among the jurists.
- Thus, **Incorporeal rights** fall under the designation of property in Islamic jurisprudence, and the owners have the rights to dispose of them through sale, purchase, or lease. They constitute financial rights for their owners that are safeguarded by Islamic law (*Shari'ah*).

The Berne Convention for the Protection of Literary and Artistic Works (1886)

Copyrights

Copyright falls under intellectual property; it gives the author or creator the right to use and exploit the work, and prevent others from using and benefiting from it without their consent.

The author's literary and material rights are fully reserved for the creators.

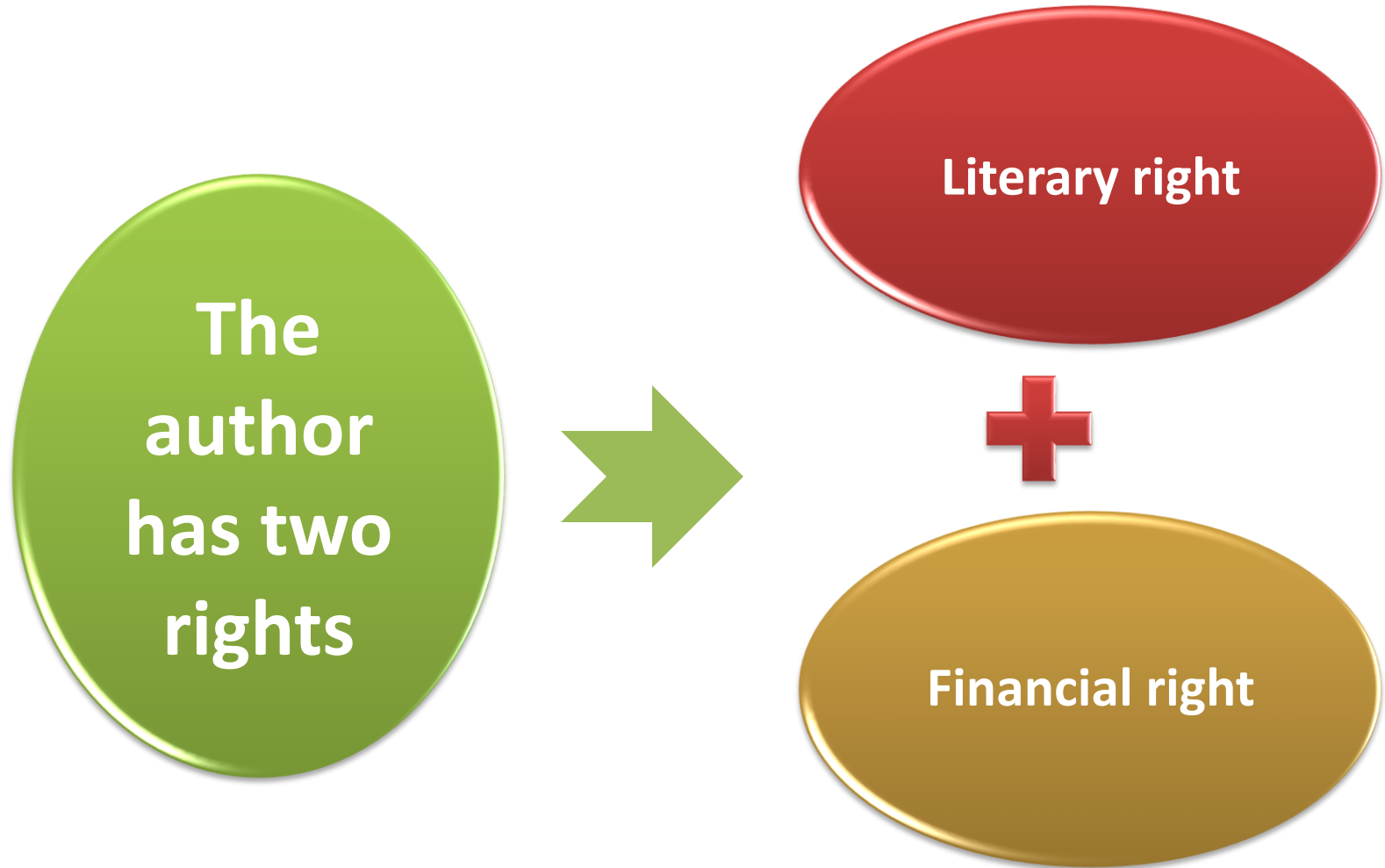
Who is called (the author)?

The author is the person who created the work; Whoever has their name published on the work is considered an author unless proven otherwise. In cases where their name is not mentioned; or referring to it under a pseudonym, the publisher becomes a representative on behalf of the author. The name of the author also includes anyone who contributes in the creation of visual and audio work; Like authors of texts, scenarios, and dialogue writers.

Conditions for a work to be copyrighted

It is required that the work be creative to any extent. e.g. An author can compose something new, or develop an existing work through interpreting or adding details to it, or correcting its mistakes, or summarizing it to make it easier for students to study it.

حق التأليف في نظر القانون



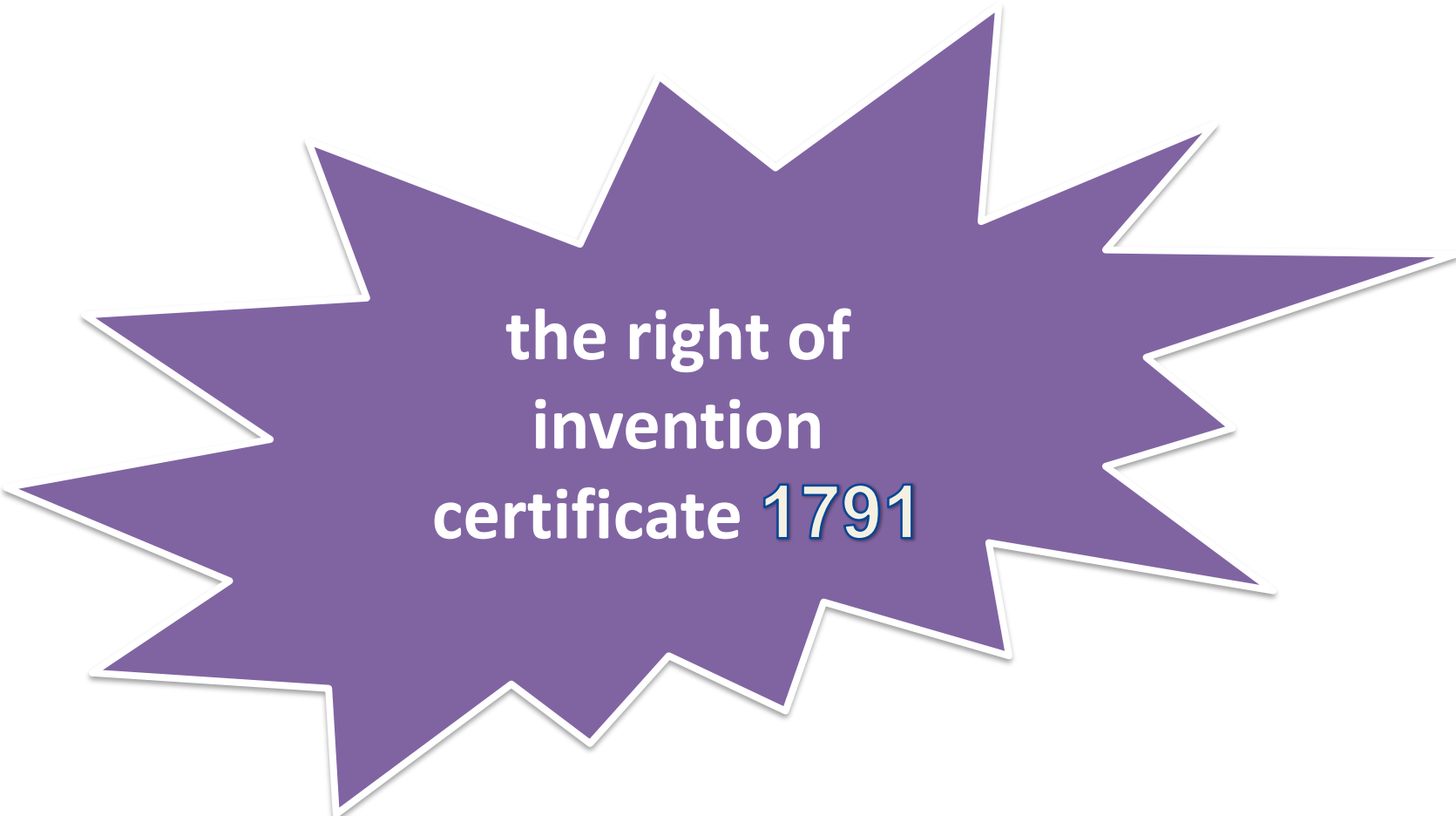
Reasons for legalizing copyright in Islam

-Intellectual property is a benefit for the humans and can be compensated for money legally like other benefits.

-The general tradition about the author's right in his composition and creation admits that it can be compensated and re compensated .

-The Islamic law prevents *plagiarism* of one's talk to other, it's necessary to relate it to its talker as to get only what he deserves from the good or to bare the fault of what it could bring evil.

-The entitlement to gain is accompanied by the burden of loss.so if the author was responsible about what he writes and will be asked about it, so he has the right to take the good and bad of what he created.



the right of
invention
certificate 1791

Navigate SAIP website and answer the following questions:

What does intellectual property
mean?

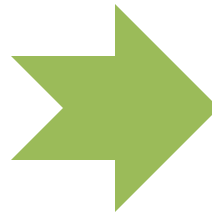
What is a patent?

What are the Conditions for obtaining
a patent?

Its definition

It is a document which is given from an official aspect, from an office which is working with the name of different countries according to a request, this official certificate gives the right to the owner to use the invention which is mentioned in the document and to benefit by selling or distributing

**The
inventor
has two
rights**

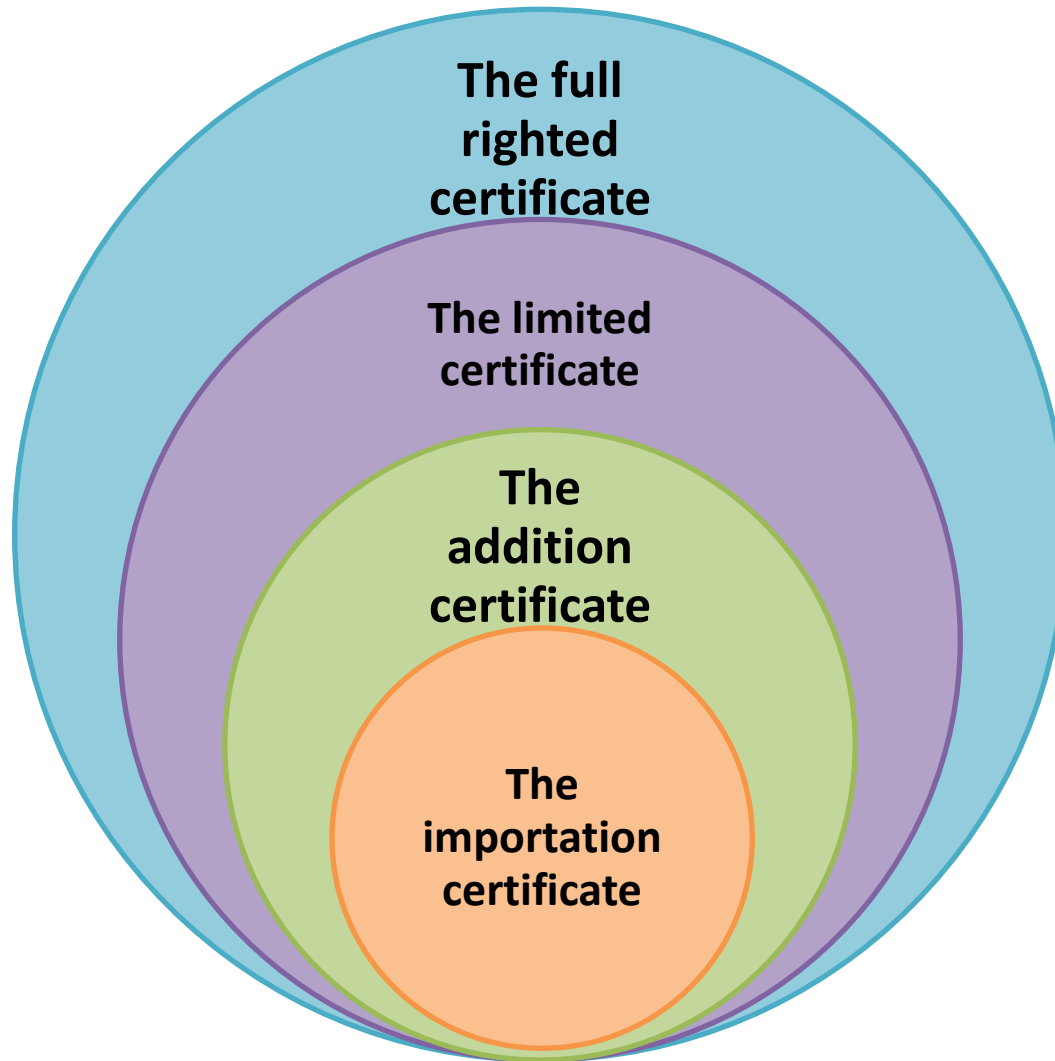


use his invention
for a limited
period of time



The invention
should be under
the inventor's
name

Types of invention certificate



Reasons for legalizing The right of Invention in Islam

-Intellectual property is a benefit for the humans and can be compensated for money legally like other benefits.

-The general tradition about the inventor's right in his and creation admits that it can be compensated and re compensated .

-The Islamic law prevents plagiarism of one's talk to other, and the invention to its inventor

-The price relates to the act, so if the inventor was responsible about what he has invented and will be counted for it, so he has the right to take the good and bad of what he has created.

The trade name's right 1909



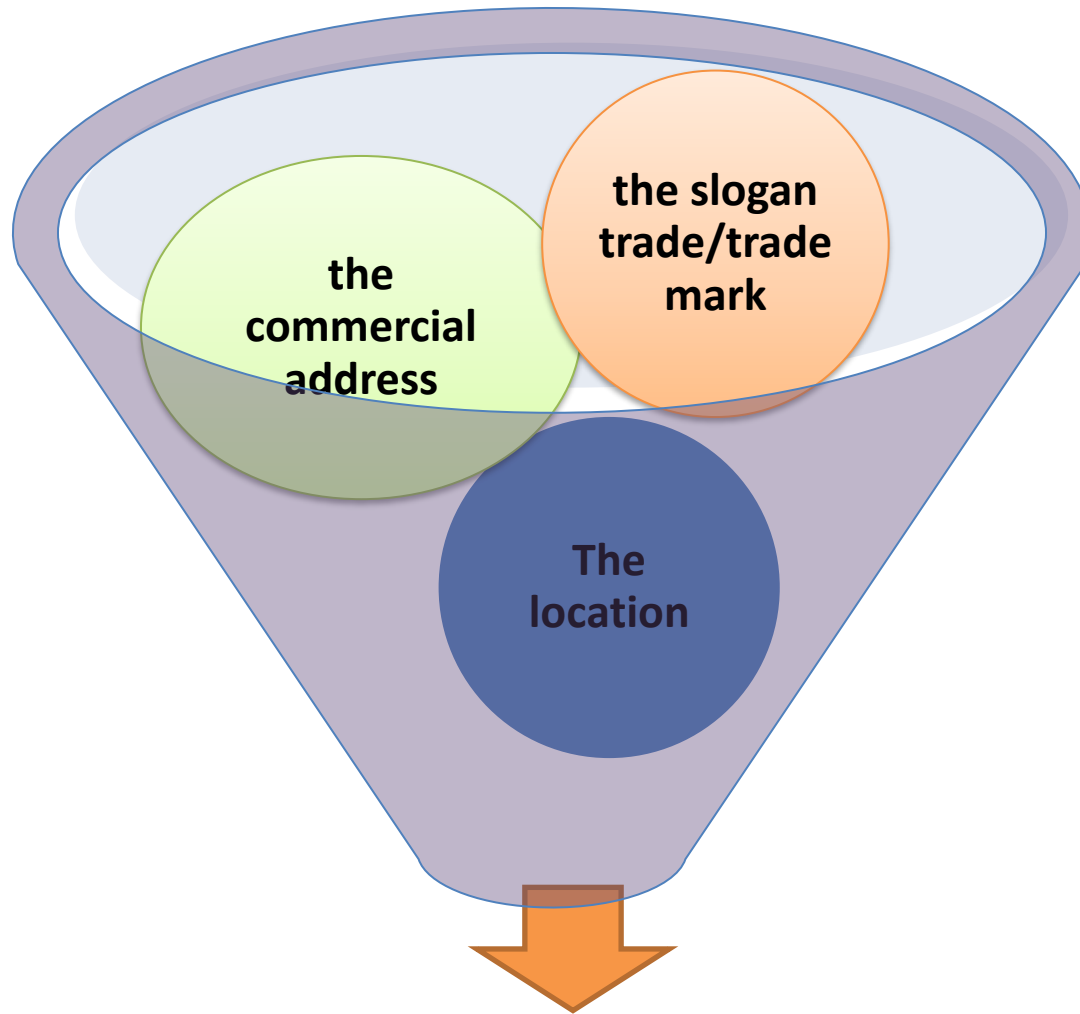
Tradename definition

- A trade name is **an official name under which an individual or company conducts business**

Trademark Definition

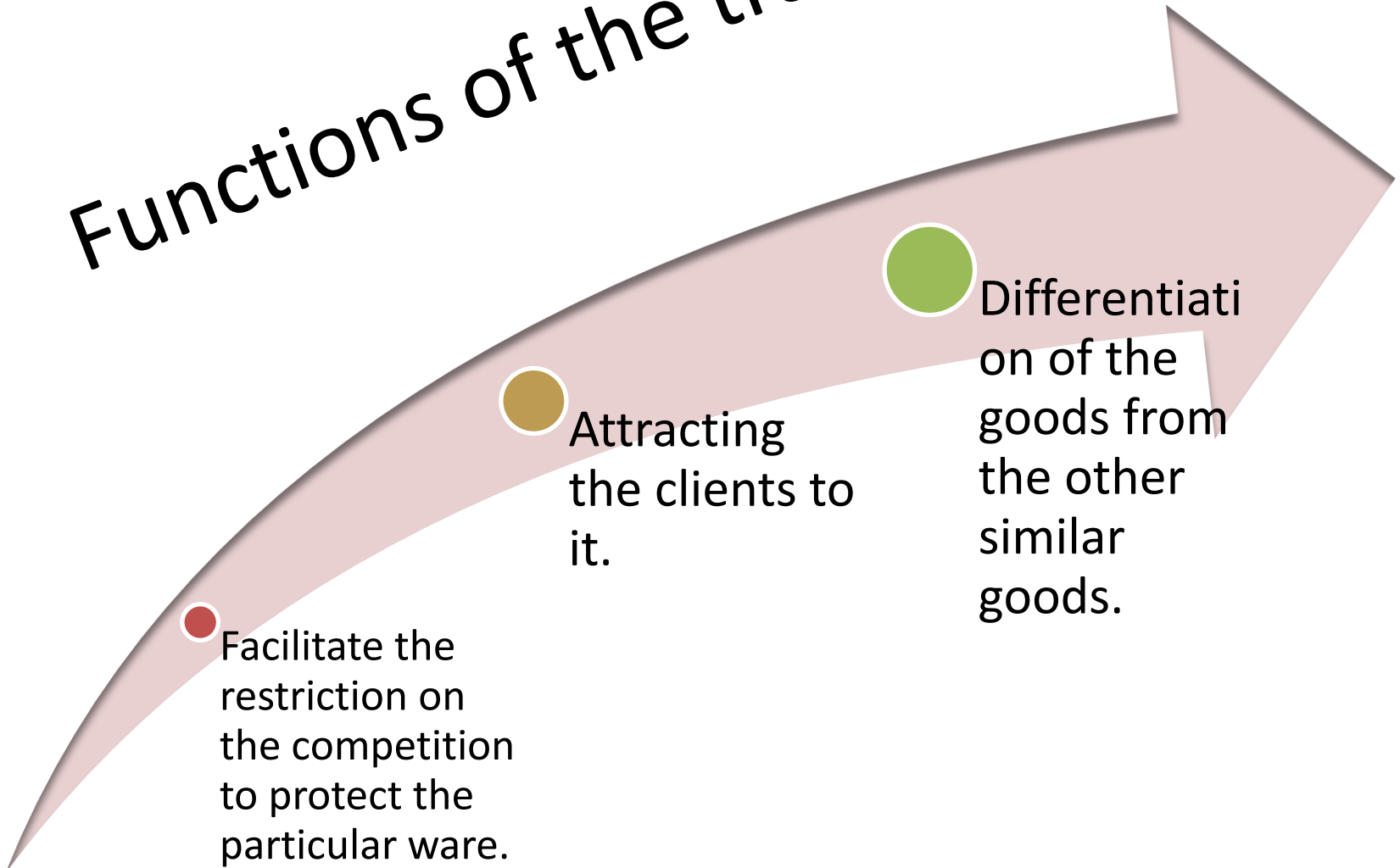
- Trademarks are those creations that come in the form of names, words, signatures, letters, symbols, numbers, titles, and seals, as well as designs, graphics, images, distinctive engravings, or the way graphic elements are wrapped; Or shapes, a color, group of colors or combinations, or any sign or group of signs if they are used or intended to be used to distinguish goods or services of a facility.

- Most recently, Saudi Arabia adopted the unified Gulf Cooperation Council (GCC) Trademark Law (effective in September 2016) and is also a member of the GCC Patent Law and GCC Customs Law, which helps to harmonize IP practices in Saudi Arabia, Kuwait, Qatar, Oman, Bahrain, and the United Arab Emirates. Patent registration is granted on a first-to-file basis in Saudi Arabia. **Similarly, registering trademarks is based on first-to-file.** Therefore, you should consider how to obtain patent and trademark protection before introducing your products or services to the market.



**The inclusive of the trade
name**

Functions of the trade name



Facilitate the restriction on the competition to protect the particular ware.

Attracting the clients to it.

Differentiation of the goods from the other similar goods.

Its rule in Shareeah

: its legally considered if it is not based on cheating or gharer (unknown /hidden results) according to the following reasons

-Intellectual property is a benefit for the humans and can be compensated for money legally like other benefits.

-The general tradition about the trade name's right in his and creation admits that it can be compensated and re compensated .

-The Islamic law prevents plagiarism of one's talk to other, and the trade name to its owner

-The price relates to the act, so if the trade name owner was responsible about what he has sold and will be counted for it, so he has the right to take the good and bad of what he has created.